Gmail **Stephen Cooke <stephencooke.c@gmail.com>**

Cooke vs Cooke

2 messages

Stephen Cooke <stephencooke.c@gmail.com> Tue, Dec 26, 2023 at 7:48 PM
To: Samantha Miller <samantha@claritylawyers.com.au>, Prue Garvin <prue@claritylawyers.com.au>

Hi Samantha,

I hope you had a wonderful Christmas. Being with my boys was fantastic, and I appreciate your help in making this happen for me.

In terms of the next steps, I urgently need your assistance in finalizing my maintenance payments. Currently, I am facing a severe shortage of cash, and my 2015 Honda requires immediate attention. The brakes and and battery need to be replaced, estimating a costs of at least $1,000.

I am also troubled by the apparent agreement to reduce my next support payment to just $1,800. This decision was made in light of accessing the $8,000 remaining ($2,000 of which was payment for your retainer) after Heather removed nearly $400,000 from our joint account.

Given my sacrifices, leaving my career and country to raise our children while Heather pursued hers, it is disheartening to now find myself in a position of needing to beg for support. I urge you to address this matter promptly.

Other items that come to mind;

Have you received Heather's affidavit, and is there an estimated time of arrival?

Concerning the subpoena, has any pertinent information been returned?

Lastly, will the statutory declaration from David, Terry White Pharmacists be useful in our case?

Regarding mediation, both the 10th and 12th are good for me. Angela (sister) departs on the 11th and I don't have the kids that week anyways.

However, were going to need a forensic accountant to take a look at our books at some stage for numerous reason but most apparent of all, Heather/Simon (Walshs) stated on the "Game Plan" document (again, crafted behind a closed door meeting which excluded me) that my Praemium investment amounts to $274,986.33!? I was looking at it the other night and I cannot find any records of it ever amounting to this amount. See page 25 of 32 of the "Game Plan" document where it lists Praemium investment as $274,986.33

Kind regards,

Stephen Cooke

Samantha Miller <samantha@claritylawyers.com.au> Tue, Jan 2, 2024 at 11:01 PM
To: Stephen Cooke <stephencooke.c@gmail.com>, Prue Garvin <prue@claritylawyers.com.au>

Dear Stephen,

I hope you are well and have enjoyed more time with the boys. I've returned to the office today and booked your mediation for 10 January at 9.30am. At this stage parenting is the priority as we have not got enough financial disclosure from Heather to proceed far with the property aspect. We will be able to discuss the interim spouse maintenance payments at the mediation and there is nothing I can do this

week as Heather's lawyer does not return to the office until Monday 8 January. I appreciate this is really difficult for you, the timing with Christmas has made it significantly harder for us to move quickly.

Addressing your questions below: no we have not received Heather's court documents (including Affidavit) yet. She will need to do this prior to the court date at the end of January.

The subpoena material from Newcastle Paediatric Clinic, Oracle, Lab Learning and Newcastle General Practice have been returned to the Court however we cannot yet access it. We will need to do this prior to any interim hearing.

The Merewether Heights subpoena is taking more time as the school is closed over Christmas.

At this point I do not believe the pharmacist will be of assistance, if he is going to be helpful we will need to put his evidence in the form of an affidavit to have it admitted to the Court.

Yours faithfully,

Samantha Miller | Director and Principal Solicitor

Office: 4023 5553

Click Here to Book an Appointment

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